

소득세법

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법제처

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국가법령정보센터

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제 20 조(근로소득) ① 근로소득은 해당 과세기간에 발생한 다음 각 호의 소득으로 한다.<개정 2016. 12. 20., 2024. 12. 31.>

1. 근로를 제공함으로써 받는 봉급、급료、보수、세비、임금、상여、수당과 이와 유사한 성질의 급여
2. 법인의 주주총회、사원총회 또는 이에 준하는 의결기관의 결의에 따라 상여로 받는 소득
3. 「법인세법」에 따라 상여로 처분된 금액
4. 퇴직함으로써 받는 소득으로서 퇴직소득에 속하지 아니하는 소득
5. 종업원등 또는 대학의 교직원이 지급받는 직무발명보상금(제 21 조제 1 항제 22 호의 2 에 따른 직무발명보상금은 제외한다)
6. 사업자나 법인이 생산、공급하는 재화 또는 용역을 그 사업자나 법인(「독점규제 및 공정거래에 관한 법률」에 따른 계열회사를 포함한다)의 사업장에 종사하는 임원등에게 대통령령으로 정하는 바에 따라 시가보다 낮은 가격으로 제공하거나 구입할 수 있도록 지원함으로써 해당 임원등이 얻는 이익

② 근로소득금액은 제 1 항 각 호의 소득의 금액의 합계액(비과세소득의 금액은 제외하며, 이하 “총급여액”이라 한다)에서 제 47 조에 따른 근로소득공제를 적용한 금액으로 한다.

③ 근로소득의 범위에 관하여 필요한 사항은 대통령령으로 정한다.

[전문개정 2009. 12. 31.]

{마지막표지}

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